THE MORNING BRIEF

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THE LEAD SUPREME COURT · SUPREME COURT OBSERVER 1 MIN READ

Learning and unlearning - Supreme Court Observer

The Supreme Court's latest report on gender asks a question that appeals rarely do: how do judges learn to write? One of the first briefs I worked on as an Advocate at the Calcutta High Court was a matrimonial dispute. The counsel for the husband had argued that the wife did not deserve maintenance as.

SOURCE · SUPREME COURT OBSERVER · SUPREME COURT scobserver.in ↗

THE LEGAL LEDGER

18 STORIES

SUPREME COURT · SUPREME COURT OBSERV…

Tejpal returns to the Supreme Court - Supreme Court Observer

Supreme Court Observer · 1 min read www.scobserver.i…

ORISSA HIGH COURT · LIVELAW

Deity's Status As 'Perpetual Minor' Doesn't Bar Adverse Possession Claims Over Its Property: Orissa High Court

The Orissa High Court has reiterated that a deity, despite being a perpetual minor in the eyes of law, is neither exempted from the application of the periods of limitation, nor from the claims…

- Constitution Bench: Justice Sanjeeb Kumar Panigrahi
- Held that the deity, being a perpetual minor, no claim for adverse possession can be made against her property
- Held that the need for human agency to represent the deity does not put its property beyond the operation of limitation
- Noted that the Courts below also rejected the claim on the independent ground that the occupation disclosed by the receipts originated in annual lease arra

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JUDICIARY · BAR & BENCH

Decorum and protocol in virtual proceedings

Virtual hearings are fast becoming a norm in the Indian judicial system and became routine during the covid pandemic. It has not only given Advocates the freedom and flexibility to app…

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SUPREME COURT · LIVELAW

LiveLaw Bharatiya Nagarik Suraksha Sanhita (BNSS) And Bharatiya Nyaya Sanhita (BNS) Monthly Digest: October 2026

SUPREME COURT Delhi Protest | Supreme Court Refuses To Examine Challenge To Section 163 BNSS, Issues Notice On Plea Challenging S. 172 BNSS Case Title: Samriddhi Das v. Union…

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HIGH COURT · SCC ONLINE

"Review petition cannot become an appeal in disguise"; Delhi HC reiterates scope of review under Order 47 Rule 1 CPC

Delhi High Court: While examining a review petition, a Division Bench comprising Vivek Chaudhary and Tejas Karia * , JJ., reiterated that review under Order 47 Rule 1 , Civil Proced…

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HIGH COURT · SCC ONLINE

Unauthorised use of Amitabh Bachchan's name and photographs infringes publicity rights: Inside Delhi HC ruling

Delhi High Court: While adjudicating a suit filed by Amitabh Bachchan seeking protection of his personality and publicity rights against unauthorised commercial exploitation of …

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GAUHATI HIGH COURT · LIVELAW

Gauhati High Court Criticises Assam Pollution Board For Reviving Long-Expired Environmental Consent Of…

The Gauhati High Court has quashed an order of the Pollution Control Board, Assam extending the validity of a provisional consent granted to M/s M M Carbon Products Pvt. Ltd. …

- Division Bench: Justice Kalyan Rai Surana, Justice Pranjal Das
- Held that a provisional consent which had expired in 2013 could not have been revived after six years by treating an application for fresh consent as…
- Observed that the Board had failed to identify any statutory provision authorising it to extend the validity of an expired provisional consent
- Noted that the company's application dated August 28, 2019 was for fresh consent and could not be treated as an application for extending the validity of…

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HOW TO LISTEN *Audio edition: brief.mp3 attached — ≈46 min listen.*

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PATNA HIGH COURT · LIVELAW

'Permanent Lok Adalat Has No Jurisdiction To Record Compromise In Land Disputes': Patna High Court

Patna High Court judgment in Bigan Shah v. State of Bihar through the District Collector.

- Single Judge: Justice G. Anupama Chakravarthy
- Held that a Permanent Lok Adalat has no jurisdiction to record a compromise in a land dispute, as its jurisdiction under the Legal Services Authorities Ac
- Held that Sections 22-A and 22-B(1) of the Legal Services Authorities Act, 1987, do not empower a Permanent Lok Adalat to record compromises concerning la
- Held that the forum lacked jurisdiction to record the compromise in the land dispute in the first place

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MADRAS HIGH COURT · LIVELAW

Surgical Needle Found In Woman's Abdomen 12 Years After Surgery: Madras High Court Orders Probe

The Madras High Court has directed the Tamil Nadu Medical Council to conduct an enquiry after a woman alleged that a surgical needle was left inside her abdomen in a surgery.

- Bench: Justice PT Asha
- Noted that the woman belonged to lower strata of society and her economic condition did not permit her to take medical treatment for abdominal pain earlier
- Noted that the intra-operative report showed the presence of a needle which showed the careless manner in which the surgery was performed

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TELANGANA HIGH COURT · LIVELAW

Telangana High Court Refuses To Exempt HYDRAA Commissioner From Personal Appearance In Contempt Case, Asks DGP To…

The Telangana High Court refused to dispense with the personal appearance of the Commissioner of the Hyderabad Disaster Response and Assets Protection Age…

- Single Judge: Justice C V Bhaskar Reddy
- Directed that the Director General of Police, Telangana, shall ensure the personal appearance of - Commissioner, HYDRAA, before the Court on the next date of h
- Stated that he was required to discharge pressing official duties, including the initiation of enforcement drives against illegal commercial borewells and u
- Held that pending applications cannot be a ground to 'disregard the directions' issued by the court

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GUJARAT HIGH COURT · LIVELAW

Cruel Transportation Of Cattle No Ground To Presume They Were Being Taken For Slaughter: Gujarat High Court

The Gujarat High Court granted bail to two men who were booked under Prevention of Cruelty to Animals Act, observing that merely because an animal is found in an inhuman condition wo…

- Bench: Justice Hasmukh D Suthar
- Noted that the allegation against the two men was that they along with the co-accused were found transporting 10 cows and 2 calves without arranging proper
- Noted that the a pplicants were behind bars since 12

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HIGH COURT · SCC ONLINE

Political satire crosses line when it attacks individual dignity: Inside Delhi HC order directing takedown of CM Rekha Gupta'…

Disclaimer: This has been reported after the availability of the order of the Court and not on media reports so as to give an accurate report to our readers. Delhi High Court: In a suit institu…

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KERALA HIGH COURT · LIVELAW

'High Time For Legislature To Consider Reducing Age Of Juveniles To 16 Years': Kerala High Court

Kerala High Court judgment in Vinod Vikraman Pillai v. State of Kerala and Ors.

- Bench: Justice A. Badharudeen, Justice Act
- Observed that time has come for the legislature to consider reducing the age of juveniles/child in conflict with law (CCL) to 16 years…
- Opined that the matter required a detailed hearing since even persons below the age of 18 years have caused fatal motor accidents
- Directed the Excise Commissioner to file a statement disclosing the direction issued to implement the statutory mandates under the Abkari Act with respect to

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DELHI HIGH COURT · LIVELAW

Longstanding Practice Of Organising Chhath Puja Can't Justify Use Of Public Green Area: Delhi High Court

The ruling: Longstanding practice of organising Chhath Puja at a particular location cannot, by itself….

- Bench: Justice Jasmeet Singh
- Held that the document could not be construed as superseding the directions it had already issued on August 19
- Observed that an administrative decision of the Executive or any other body cannot nullify or dilute a judicial order

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JHARKHAND HIGH COURT · LIVELAW

'Absence Of Weapon, Lack Of Prior Enmity Relevant In Determining Whether Fatal Assault Constitutes Murder':…

The Bench discussed the distinction between intention and knowledge under the IPC, observing that knowledge of the possible consequences of an act is not necessar…

- Division Bench: Justice Sujit Narayan Prasad, Justice Pradeep Kumar Srivastava
- Held that the absence of a weapon, lack of prior enmity and premeditation…
- Held that the prosecution had failed to establish beyond reasonable doubt that Tasleem Khan intended to cause death so as to attract a conviction for murd

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THE LEGAL LEDGER

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JAMMU & KASHMIR AND LADAKH HIGH CO…

J&K&L High Court Directs Police To Supply Material Behind 'Militant' Remark Against Complainant In Police Report

Justice Shahzad Azeem observed that the petitioner must first be supplied the relevant material so that he could examine it and thereafter avail an appropriate remedy under l…

- Directed the Station House Officer (SHO), Police Station Chadoora, to furnish to a petitioner the material forming the basis of remarks describing him as a Pa
- Stated that he had been arrested in 1992 and released in 1993

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SUPREME COURT · LIVELAW

Supreme Court Quarterly Digest 2026 - Consumer Law [July To September]

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CALCUTTA HIGH COURT · LIVELAW

Calcutta High Court Upholds Life Sentence Of BSF Constable For Killing Colleague Over Relationship With Woman

The Court held that the testimony of the sole eyewitness, Dasami Modak, was sufficiently credible to sustain the conviction, particularly as it was supported by the ballistic report, inqu…

- Division Bench: Justice Arijit Banerjee, Justice Chaitali Chatterjee, Justice Banerjee
- Stated that she was in physical relationships with both Arbind and Raghunandan
- Stated that on the night of the incident, she had gone to meet Arbind after noticing a torchlight signal from him

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CASE LAW YOU CAN QUOTE §

JUDICIARY CAPSULE · RATIOS FOR THE ANSWER SHEET

LRs v. Commissioner of Endowments — ORISSA HIGH COURT

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Bigan Shah v. State of Bihar through the District Collector — PATNA HIGH COURT

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spy'andV-P outed, Nvidia chiefresigns

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agent, police tell court

Sakshi Chand security at risk. New Delhi, November 12 According to the charge- sheet, information about the A WING Commander of the strength and structure of a se- IAF, arres…

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ECONOMY · THE HINDU

Stock markets snap three-day rally on rate hike fears; Sensex drops 318 points

Retail inflation surged to 6.09% in October, breaching the RBI’s upper tolerance limit for the first time in two years and prompting expectations of a rate hike next month.

The Hindu · 1 min read www.thehindu.com/business/stock…

NATIONAL · THE HINDU

Fee reimbursement dues pushing students into distress in Andhra, says Jagan

Accusing the government of being indifferent to students' plights, the YSRCP president demands that the Chief Minister stop diverting attention from the issue and take responsibility.

The Hindu · 1 min read www.thehindu.com/news/national/…

NATIONAL · THE HINDU

Take steps to control inflation, Anbumani Ramadoss tells State govt.

Poor and middle class families are facing severe hardship due to rising prices of essential food commodities, including rice, pulses and edible oils, says PMK leader.

The Hindu · 1 min read www.thehindu.com/news/national/…

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NATIONAL · THE HINDU

Kerala High Court seeks State's response to PIL seeking mechanism to implement cyber laws

Cyber laws under Information Technology Act and Bharatiya Nyaya Sanhita focus primarily on ensuring punishment after commission of crime, says petitioner.

The Hindu · 1 min read www.thehindu.com/news/national/…

NATIONAL · THE HINDU

Andhra Pradesh secures ₹9.88 lakh crore investment commitments at CII Partnership Summit in Vizag

Andhra Pradesh attracts ₹9.88 lakh crore in MoUs at CII Summit, pledges retrospective Investment Protection Act and real-time self-certification to boost investment.

The Hindu · 1 min read www.thehindu.com/news/national/…

NATIONAL · THE HINDU

File FIR against those who tarnish party's image says Bengal BJP chief

"BJP has reached here (came to power) by keeping them out. BJP has no need to touch them," West Bengal BJP president Samik Bhattacharya said, adding that doors of the pa…

The Hindu · 1 min read www.thehindu.com/news/national/…

ECONOMY · THE HINDU

Why RBI wants to cap select overseas remittances at ₹50 Lakh to save rupees | Explained

The RBI has reportedly proposed a ₹50 lakh sub-limit within the $250,000 annual Liberalised Remittance Scheme cap to curb dollar outflows and protect the rupee.

The Hindu · 1 min read www.thehindu.com/business/Econ…

ECONOMY · THE HINDU

Rupee falls 8 paise to close at 94.20 against U.S. dollar

Forex traders said the U.S. dollar has strengthened, driven by stronger-than-expected U.S. inflation data, rising Treasury yields and hawkish remarks from U.S. Federal Rese…

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Quad summit likely in Manila next week on margins of regional meets

EXPLAINED India-Asean,East Summitthatwasn't Asia summits Leadersofthe Quad group- Shubhajit Roy inglast met in Atlanta in New Delhi, November 12 2024. In…

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OPINION & ANALYSIS

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OPINION · THE HINDU

Brace for impact: On rising inflation and external factors

Rising inflation driven by external factors tests India's resilience as high prices widen across sectors and real wages erode.

The Hindu · 1 min read www.thehindu.com/opinion/editor…

OPINION · THE HINDU

To strengthen the Supreme Court, divide it

Advocates splitting India's Supreme Court into a lean Constitutional Court and regional appeals to reduce backlog and restore decisive constitutional judgment.

The Hindu · 1 min read www.thehindu.com/opinion/lead/t…

OPINION · THE HINDU

Critical ban: On recycling of lithium-ion batteries

India bans lithium-ion battery black mass exports to boost domestic recycling, but needs ecosystem, pricing reforms, and rare-earth policy to work.

The Hindu · 1 min read www.thehindu.com/opinion/editor…

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